

HOUSE BILL 149

By Gant

AN ACT to amend Tennessee Code Annotated, Title 5;  
Title 6; Title 7, Chapter 51 and Title 65, Chapter  
17, relative to utility facilities.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-51-2202(e), is amended by deleting the subsection and substituting:

This section does not expand or alter the regulation of utility facility siting provided in title 65, chapter 17.

SECTION 2. Tennessee Code Annotated, Section 65-17-101(1)(A), is amended by deleting "wind energy" and substituting "utility".

SECTION 3. Tennessee Code Annotated, Section 65-17-101(1)(B), is amended by deleting "wind and environmental analysis" wherever it appears and substituting "wind, solar, and environmental analysis".

SECTION 4. Tennessee Code Annotated, Section 65-17-101(6), is amended by deleting "wind turbine" and substituting "wind turbine or solar array".

SECTION 5. Tennessee Code Annotated, Section 65-17-101(7)(A) and (B), are amended by deleting "wind energy" wherever it appears and substituting "utility".

SECTION 6. Tennessee Code Annotated, Section 65-17-101(10), is amended by deleting "wind energy" wherever it appears and substituting "utility".

SECTION 7. Tennessee Code Annotated, Section 65-17-101(11), is amended by deleting "wind turbine" and substituting "wind turbine or solar array".

SECTION 8. Tennessee Code Annotated, Section 65-17-101, is amended by inserting the following new subdivisions:

( )

(A) "Solar energy facility" means, collectively, a device or structure, or series thereof, that provides for the collection of solar energy for electricity generation, together with all facilities and equipment, other than any facility or equipment owned by a public utility, as defined by § 65-4-101, located proximate to and in support of the operation of such electricity generation device or structure, including, without limitation, all underground and aboveground electrical collection, distribution, and transmission lines; inverters; transformers; substations; energy storage facilities; telecommunications equipment and communication lines; meteorological towers; maintenance yards; switchgear; fences; and foundations supporting other components of the solar power facility; and

(B) "Solar energy facility" does not include:

(i) A solar-generating device or structure that is less than five megawatts (5 MW) in size, measured in alternating current at the point of interconnection to the electrical grid, unless the application of this part is expressly provided for in a solar energy facility agreement; or

(ii) Equipment that, when installed in connection with a dwelling, transmits or uses solar energy to produce energy in a useful form for residential purposes;

( ) "Solar energy facility expansion" means any activity that:

(A) Adds or substantially modifies a solar energy facility, including increasing the number of transmission facilities, or other equipment; or

(B) Increases the footprint of the solar energy facility;

( ) "Utility facility" means a solar energy facility, wind energy facility, or wind energy facility or solar energy facility expansion;

SECTION 9. Tennessee Code Annotated, Section 65-17-102(a), is amended by deleting "wind energy" and substituting "utility".

SECTION 10. Tennessee Code Annotated, Section 65-17-102(b), is amended by deleting "wind energy" and substituting "utility".

SECTION 11. Tennessee Code Annotated, Section 65-17-102, is amended by adding the following new subsections:

( ) This chapter does not apply in a local government jurisdiction that has adopted regulations related to the siting of solar energy facilities in the jurisdiction on or before July 1, 2025.

( ) This chapter does not apply to any solar energy facility located in this state that was constructed prior to July 1, 2025.

SECTION 12. Tennessee Code Annotated, Section 65-17-104, is amended by deleting "wind energy" wherever it appears and substituting "utility".

SECTION 13. Tennessee Code Annotated, Section 65-17-105(a), is amended by deleting "wind energy" wherever it appears and substituting "utility".

SECTION 14. Tennessee Code Annotated, Section 65-17-105(c), is amended by deleting "wind energy" wherever it appears and substituting "utility".

SECTION 15. Tennessee Code Annotated, Section 65-17-105(d), is amended by deleting "wind energy" wherever it appears and substituting "utility".

SECTION 16. Tennessee Code Annotated, Section 65-17-105(e)(1), is amended by deleting the subdivision and substituting:

The local legislative body may adopt local legislation with any condition, criteria, or other provision it deems necessary for establishing regulations or granting a permit for

the construction, operation, or redevelopment of a utility facility or utility facility expansion under this chapter. The local legislative body may issue a permit for a general boundary, and the utility facility may elect to move the planned locations of a utility facility or other utility facility component after permit approval; provided, that the locations must not be moved outside of the permitted boundary and must comply with all other requirements pursuant to this chapter. The local legislative body may also institute utility facility design conditions for granting a permit in order to comply with any conditional approval from the wildlife resources agency and to mitigate potential impacts, as identified by the local legislative body or local agency.

SECTION 17. Tennessee Code Annotated, Section 65-17-105(e)(2)(A), is amended by deleting the subdivision and substituting:

(A)

(i) The minimum setback for any wind turbine of a utility facility from any non-participating landowner's property line be equal to three and one-half (3.5) times the total height of the turbine structure as measured from the ground at its base to the maximum height of the blade tip; except, that a non-participating landowner may elect to sign a waiver to allow any wind turbine or group of turbines of a utility facility to be placed up to one and one-tenth (1.1) times the total height of the turbine structure as measured from the ground at its base to the maximum height of the blade tip from the landowner's property line;

(ii) The minimum setback for any solar array of a utility facility from any non-participating landowner's property line be equal to three and one-half (3.5) times the total width or depth of the solar array, whichever is greater; except, that a non-participating landowner may elect to sign a waiver to allow any solar array or group of arrays of a utility facility to be placed up to one and one-tenth (1.1)

times the width or depth of the solar array, whichever is greater, from the landowner's property line;

SECTION 18. Tennessee Code Annotated, Section 65-17-105(e)(2)(B), is amended by deleting "wind energy" and substituting "utility".

SECTION 19. Tennessee Code Annotated, Section 65-17-105(e)(2)(B)(v), is amended by deleting the subdivision and substituting:

(v) Risk assessment and mitigation recommendations for:

(a) Shadow flicker and incidents, such as wind turbine fires, structural damage or failure, ice and blade throw, and hazardous material spills; and

(b) Arc flashes, including arc flash burn and blast hazards; electric shock; and thermal burn hazards; and

SECTION 20. Tennessee Code Annotated, Section 65-17-105(e)(2)(C), is amended by deleting "wind energy" and substituting "utility".

SECTION 21. Tennessee Code Annotated, Section 65-17-105(e)(2)(E)(i), is amended by deleting "wind energy" and substituting "utility".

SECTION 22. Tennessee Code Annotated, Section 65-17-105(e)(2)(F), is amended by deleting the subdivision and substituting:

(F)

(i) Any wind turbine or solar array of a utility facility that ceases to generate electricity for one hundred eighty (180) continuous days must be decommissioned or removed, unless the termination of electricity was mandated by state or federal law; provided, that one (1) or more extensions may be allowed for one-hundred-eighty-day periods at a time; or

(ii) Any wind turbine or group of wind turbines of a utility facility that violates the noise level restrictions provided in subdivision (e)(2)(D) must be decommissioned or

removed, unless the turbine or group of turbines is brought into compliance within one hundred eighty (180) days of the violation; provided, that a single one-hundred-eighty-day extension may be allowed; and

SECTION 23. Tennessee Code Annotated, Section 65-17-107, is amended by deleting "wind energy" and substituting "utility".

SECTION 24. Tennessee Code Annotated, Section 65-17-110, is amended by deleting "wind energy" and substituting "utility".

SECTION 25. Tennessee Code Annotated, Section 65-17-111, is amended by deleting "wind energy" and substituting "utility".

SECTION 26. If any provision of this act or its application to any person or circumstance is held invalid, then the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 27. This act takes effect July 1, 2025, the public welfare requiring it.